3568

Executive Order

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO USE CERTAIN FUNDS IN HIS POSSESSION IDENTIFIED AS THE "THOMAS W. MILLER, ALIEN PROPERTY CUSTODIAN, SPECIAL ACCOUNT."

By virtue of the authority vested in me by "An act to define, regulate and punish trading with the enemy, and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such act embodied in "An act making appropriations to supply urgent deficiencies in appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses and for other purposes", approved November 4, 1918, to make orders such as that herein contained, and all other powers and authorities me hereto enabling, I do hereby make the following determination and order.

The Alien Property Custodian is hereby authorized to use the fund in his possession which is identified as the "Thomas W. Miller Alien Property Custodian, Special Account" for the payment of counsel and other expenses incurred in the administration of Trusts where it is impossible to compensate counsel or meet such expenses out of the proceeds of such Trusts.

My reasons for the foregoing determination and Order are:

(a) The fund, identified as the "Thomas W. Miller Alien Property Custodian, Special Account" represents earnings on commingled amounts of money held on deposit for the Alien Property Custodian during the course of accounting for the purpose of deposit in the Treasury of the United States of specific sums of money chargeable to specific Trusts.

(b) Said fund is properly applicable to the payment of expenses of the office of the Alien Property Custodian incurred in the administration of Trusts as it is composed of earnings of said office incapable of being allocated to any particular trusts.

Done in the District of Columbia this 24th day of October in the year of our Lord one thousand nine hundred and twenty-one in the year of the independence of the United States, the one hundred and forty-sixth.

WARREN G HARDING

[No. 3568.]